

possessions as the Secretary might determine in the censuses to be taken. See section 191 of this title.

CENSUS DATA ON WOMEN OWNED BUSINESSES; STUDY AND REPORT

Pub. L. 100-533, title V, §501, Oct. 25, 1988, 102 Stat. 2697, provided that:

“(a) BUREAU OF LABOR STATISTICS.—The Bureau of Labor Statistics of the Department of Labor shall include in any census report it may prepare on women owned business data on—

- “(1) sole proprietorships;
- “(2) partnerships; and
- “(3) corporations.

“(b) BUREAU OF THE CENSUS.—The Bureau of the Census of the Department of Commerce shall include in its Business Census for 1992 and each such succeeding census data on the number of corporations which are 51 per centum or more owned by women.

“(c) COMBINED STUDY.—Not later than one hundred and eighty days after the effective date of this section [Oct. 25, 1988], the Office of the Chief Counsel for Advocacy of the Small Business Administration (hereinafter referred to in this subsection as the ‘Office’) shall conduct a study and prepare a report recommending the most cost effective and accurate means to gather and present the data required to be collected pursuant to subsections (a) and (b). The Department of Commerce and the Department of Labor shall provide the Office such assistance and cooperation as may be necessary and appropriate to achieve the purposes of this subsection.”

§ 132. Controlling law; effect on other agencies

To the extent that the provisions of this subchapter or subchapter IV of this chapter conflict with any other provision of this title or other law, pertaining to the Secretary of the Department of Commerce, the provisions of this title shall control; but nothing in this title shall be deemed to revoke or impair the authority of any other Federal agency with respect to the collection or release of information.

(Aug. 31, 1954, ch. 1158, 68 Stat. 1019.)

HISTORICAL AND REVISION NOTES

Based on title 13, U.S.C., 1952 ed., §123 (June 19, 1948, ch. 502, §3, 62 Stat. 479).

Section was derived from all of section 123 of title 13, U.S.C., 1952 ed., except the first sentence. That sentence is incorporated with other provisions in chapter 1 of this title. See Distribution Table.

The reference “Secretary or Department of Commerce” was substituted for reference to the Bureau of the Census to conform with 1950 Reorganization Plan No. 5, §§1, 2, eff. May 24, 1950, 15 F.R. 3174, 64 Stat. 1263. See Revision Note to section 4 of this title.

Changes were made in phraseology.

SUBCHAPTER II—POPULATION, HOUSING, AGRICULTURE, IRRIGATION,¹ AND UNEMPLOYMENT

AMENDMENTS

1986—Pub. L. 99-544, §1(b), Oct. 27, 1986, 100 Stat. 3046, struck out “DRAINAGE” after “IRRIGATION,”.

SUBCHAPTER REFERRED TO IN OTHER SECTIONS

This subchapter is referred to in sections 221, 222, 223, 225 of this title.

§ 141. Population and other census information

(a) The Secretary shall, in the year 1980 and every 10 years thereafter, take a decennial cen-

sus of population as of the first day of April of such year, which date shall be known as the “decennial census date”, in such form and content as he may determine, including the use of sampling procedures and special surveys. In connection with any such census, the Secretary is authorized to obtain such other census information as necessary.

(b) The tabulation of total population by States under subsection (a) of this section as required for the apportionment of Representatives in Congress among the several States shall be completed within 9 months after the census date and reported by the Secretary to the President of the United States.

(c) The officers or public bodies having initial responsibility for the legislative apportionment or districting of each State may, not later than 3 years before the decennial census date, submit to the Secretary a plan identifying the geographic areas for which specific tabulations of population are desired. Each such plan shall be developed in accordance with criteria established by the Secretary, which he shall furnish to such officers or public bodies not later than April 1 of the fourth year preceding the decennial census date. Such criteria shall include requirements which assure that such plan shall be developed in a nonpartisan manner. Should the Secretary find that a plan submitted by such officers or public bodies does not meet the criteria established by him, he shall consult to the extent necessary with such officers or public bodies in order to achieve the alterations in such plan that he deems necessary to bring it into accord with such criteria. Any issues with respect to such plan remaining unresolved after such consultation shall be resolved by the Secretary, and in all cases he shall have final authority for determining the geographic format of such plan. Tabulations of population for the areas identified in any plan approved by the Secretary shall be completed by him as expeditiously as possible after the decennial census date and reported to the Governor of the State involved and to the officers or public bodies having responsibility for legislative apportionment or districting of such State, except that such tabulations of population of each State requesting a tabulation plan, and basic tabulations of population of each other State, shall, in any event, be completed, reported, and transmitted to each respective State within one year after the decennial census date.

(d) Without regard to subsections (a), (b), and (c) of this section, the Secretary, in the year 1985 and every 10 years thereafter, shall conduct a mid-decade census of population in such form and content as he may determine, including the use of sampling procedures and special surveys, taking into account the extent to which information to be obtained from such census will serve in lieu of information collected annually or less frequently in surveys or other statistical studies. The census shall be taken as of the first day of April of each such year, which date shall be known as the “mid-decade census date”.

(e)(1) If—

(A) in the administration of any program established by or under Federal law which provides benefits to State or local governments or

¹ So in original.

to other recipients, eligibility for or the amount of such benefits would (without regard to this paragraph) be determined by taking into account data obtained in the most recent decennial census, and

(B) comparable data is obtained in a mid-decade census conducted after such decennial census,

then in the determination of such eligibility or amount of benefits the most recent data available from either the mid-decade or decennial census shall be used.

(2) Information obtained in any mid-decade census shall not be used for apportionment of Representatives in Congress among the several States, nor shall such information be used in prescribing congressional districts.

(f) With respect to each decennial and mid-decade census conducted under subsection (a) or (d) of this section, the Secretary shall submit to the committees of Congress having legislative jurisdiction over the census—

(1) not later than 3 years before the appropriate census date, a report containing the Secretary's determination of the subjects proposed to be included, and the types of information to be compiled, in such census;

(2) not later than 2 years before the appropriate census date, a report containing the Secretary's determination of the questions proposed to be included in such census; and

(3) after submission of a report under paragraph (1) or (2) of this subsection and before the appropriate census date, if the Secretary finds new circumstances exist which necessitate that the subjects, types of information, or questions contained in reports so submitted be modified, a report containing the Secretary's determination of the subjects, types of information, or questions as proposed to be modified.

(g) As used in this section, "census of population" means a census of population, housing, and matters relating to population and housing.

(Aug. 31, 1954, ch. 1158, 68 Stat. 1019; Aug. 28, 1957, Pub. L. 85-207, § 9, 71 Stat. 483; Dec. 23, 1975, Pub. L. 94-171, §§ 1, 2(a), 89 Stat. 1023, 1024; Oct. 17, 1976, Pub. L. 94-521, § 7(a), 90 Stat. 2461.)

HISTORICAL AND REVISION NOTES

Based on title 13, U.S.C., 1952 ed., § 201 (June 18, 1929, ch. 28, § 1, 46 Stat. 21; May 17, 1932, ch. 190, 47 Stat. 158).

References to the Secretary, meaning the Secretary of Commerce, were substituted for references to the Director of the Census, to conform with 1950 Reorganization Plan No. 5, §§ 1, 2, eff. May 24, 1950, 15 F.R. 3174, 64 Stat. 1263. See Revision Note to section 4 of this title.

The provision for taking the censuses in "1930 and every ten years thereafter" was changed to "1960 and every ten years thereafter" since the censuses for the years 1930, 1940 and 1950 have been completed.

The requirement that decennial censuses of "distribution" and "mines" should also be taken was omitted as superseded by section 121 of title 13, U.S.C., 1952 ed. (enacted in 1948), the provisions of which were carried into subchapter I of this chapter.

Section 1442 of title 42, U.S.C., 1952 ed., the Public Health and Welfare (which section has been transferred in its entirety to this revised title), made all provisions of chapter 4 of title 13, U.S.C., 1952 ed., applicable to the housing censuses provided for in such section. However, section 201 of such title 13 (which section was a part of

such chapter 4), which, as indicated above, has been carried into this revised section, could not, except, possibly, for the provisions thereof relating to the territorial scope of the censuses and to the census duties of the governors of Guam, Samoa, the Virgin Islands, and the Canal Zone, have any relevancy to such housing censuses, and such section 1442 of title 42, U.S.C., 1952 ed., contained its own provisions relating to territorial scope of the housing censuses. Therefore the provisions of this revised section have not been made so applicable.

Changes were made in phraseology.

AMENDMENTS

1976—Pub. L. 94-521 substituted "Population and other census information" for "Population, unemployment, and housing" in section catchline, without reference to amendment of catchline by Pub. L. 94-171.

Subsec. (a). Pub. L. 94-521 substituted "1980" for "1960" and "decennial census of population" for "census of population, unemployment, and housing (including utilities and equipment)", inserted "of such year" after "April", substituted "which date shall be known as the decennial census date" for "which shall be known as the census date", and inserted provisions authorizing the Secretary to take the decennial census in whatever form and content he determines, using sampling procedures and special surveys, and authorizing him to obtain other such census information as is necessary, in connection with the decennial census.

Subsec. (b). Pub. L. 94-521 inserted "under subsection (a) of this section" after "population by States", inserted "in Congress among the several States" after "Representatives", and substituted "9 months after the census date" for "eight months of the census date".

Subsec. (c). Pub. L. 94-521 substituted "the decennial census date" for "the census date" wherever appearing.

Subsecs. (d) to (g). Pub. L. 94-521 added subsecs. (d) to (g).

1975—Pub. L. 94-171, § 2(a), inserted "tabulation for legislative apportionment" in section catchline.

Subsec. (c). Pub. L. 94-171, § 1, added subsec. (c).

1957—Pub. L. 85-207 substituted "Population, unemployment, and housing" for "Population, agriculture, irrigation, drainage, and unemployment; territory excluded" in section catchline; inserted in text housing census provisions, struck out census coverage of agriculture, irrigation, and drainage and geographical provisions, and designated existing provisions as so amended as subsec. (a); and added subsec. (b). Census of agriculture, irrigation, and drainage and the geographical provisions are covered by sections 142 and 191 of this title.

EFFECTIVE DATE OF 1976 AMENDMENT

Amendment by Pub. L. 94-521 effective Oct. 17, 1976, see section 17 of Pub. L. 94-521, set out as a note under section 1 of this title.

DECENNIAL CENSUS IMPROVEMENT ACT OF 1991

Pub. L. 102-135, Oct. 24, 1991, 105 Stat. 635, provided that:

"SECTION 1. SHORT TITLE.

"This Act may be cited as the 'Decennial Census Improvement Act of 1991'.

"SEC. 2. STUDY.

"(a) IN GENERAL.—The Secretary of Commerce shall, within 30 days after the date of enactment of this Act [Oct. 24, 1991], and subject to the availability of appropriations, contract with the National Academy of Sciences (hereinafter in this Act referred to as the 'Academy') to study—

"(1) means by which the Government could achieve the most accurate population count possible; and

"(2) consistent with the goal under paragraph (1), ways for the Government to collect other demographic and housing data.

"(b) SPECIFIC CONSIDERATIONS.—In conducting its study, the Academy shall consider such matters as—

“(1) with respect to subsection (a)(1)—

“(A) ways to improve the Government’s enumeration methods, especially with regard to those involving the direct collection of data from respondents;

“(B) alternative methods for collecting the data needed for a basic population count, such as any involving administrative records, information from subnational or other surveys, and cumulative or rolling data-collection techniques; and

“(C) the appropriateness of using sampling methods, in combination with basic data-collection techniques or otherwise, in the acquisition or refinement of population data, including a review of the accuracy of the data for different levels of geography (such as States, places, census tracts and census blocks); and

“(2) with respect to subsection (a)(2)—

“(A) the degree to which a continuing need is anticipated with respect to the types of data (besides data relating to the basic population count) which were collected through the last decennial census; and

“(B) with respect to data for which such a need is anticipated, whether there are more effective ways to collect information using traditional methods and whether alternative sources or methodologies exist or could be implemented for obtaining reliable information in a timely manner.

“(c) REPORTS.—(1) The Academy shall submit to the Secretary and to the Committee on Post Office and Civil Service of the House of Representatives and the committee on Governmental Affairs of the Senate—

“(A) within 18 months after the date on which a contract is entered into under subsection (a), an interim report on its activities under this Act; and

“(B) within 36 months after the date on which a contract is entered into under subsection (a), a final report which shall include a detailed statement of the Academy’s findings and conclusions, as well as recommendations for any legislative or administrative action which the Academy considers appropriate.

“(2) With respect to each alternative proposed or discussed in its final report, the Academy shall include—

“(A) an evaluation of such alternative’s relative advantages and disadvantages, as well as an analysis of its cost effectiveness; and

“(B) for any alternative that does not involve the direct collection of data from individuals (about themselves or members of their household), an analysis of such alternative’s potential effects on—

“(i) privacy;

“(ii) public confidence in the census; and

“(iii) the integrity of the census.”

STUDY OF COUNTING OF HOMELESS FOR NATIONAL CENSUS

Pub. L. 101-645, title IV, §402, Nov. 29, 1990, 104 Stat. 4723, provided that: “Not later than 1 year after the date of the enactment of this Act [Nov. 29, 1990], the General Accounting Office shall conduct a study of the methodology and procedures used by the Bureau of the Census in counting the number of homeless persons for the most recent decennial census conducted pursuant to title 13, United States Code, to determine the accuracy of such count, and report to the Congress the results of that study.”

MONITORING ECONOMIC PROGRESS OF RURAL AMERICA

Pub. L. 101-624, title XXIII, §2382, Nov. 28, 1990, 104 Stat. 4050, provided that:

“(a) BUREAU OF THE CENSUS.—The Director of the Bureau of the Census shall expand the data collection efforts of the Bureau to enable the Bureau to collect statistically significant data concerning the changing economic condition of rural counties and communities in the United States, including data on rural employment, poverty, income, and other information concerning the rural labor force.

“(b) LIMITATION ON AUTHORIZATION OF APPROPRIATIONS.—To carry out subsection (a), there are authorized to be appropriated \$1,000,000 for each fiscal year.”

AMERICANS OF SPANISH ORIGIN OR DESCENT; STUDY FOR DEVELOPMENT OF CREDITABLE ESTIMATES IN FUTURE CENSUSES

Pub. L. 94-311, §4, June 16, 1976, 90 Stat. 688, provided that: “The Department of Commerce, in cooperation with appropriate Federal, State and local agencies and various population study groups and experts, shall immediately undertake a study to determine what steps would be necessary for developing creditable estimates of undercounts of Americans of Spanish origin or descent in future censuses.”

NEEDS AND CONCERNS OF SPANISH-ORIGIN POPULATION; USE OF SPANISH LANGUAGE QUESTIONNAIRES AND BILINGUAL ENUMERATORS

Pub. L. 94-311, §5, June 16, 1976, 90 Stat. 689, provided that: “The Secretary of Commerce shall ensure that, in the Bureau of the Census data-collection activities, the needs and concerns of the Spanish-origin population are given full recognition through the use of Spanish language questionnaires, bilingual enumerators, and other such methods as deemed appropriate by the Secretary.”

CROSS REFERENCES

Congress, reapportionment of Representatives on basis of population census, see section 2a of Title 2, The Congress.

Population and agricultural returns, authority to furnish to State governors and courts, see section 8 of this title.

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in section 181 of this title.

§ 142. Agriculture and irrigation

(a) The Secretary shall in 1979, in 1983, and in every fifth year beginning after 1983, take a census of agriculture.

(b) In conjunction with the census to be taken under subsection (a) of this section in 1979, in 1988, and every tenth year beginning after 1988, the Secretary shall take a census of irrigation and.¹

(c) The data collected in each of the censuses taken under this section shall relate to the year immediately preceding the year in which such census is taken.

(Aug. 31, 1954, ch. 1158, 68 Stat. 1020; Aug. 28, 1957, Pub. L. 85-207, §10, 71 Stat. 483; Mar. 15, 1976, Pub. L. 94-229, §1, 90 Stat. 210; Oct. 27, 1986, Pub. L. 99-544, §1(a), 100 Stat. 3046.)

HISTORICAL AND REVISION NOTES

Based on section 1442, of title 42, U.S.C., 1952 ed., The Public Health and Welfare (July 15, 1949, ch. 338, title VI, §607, 63 Stat. 441).

Section was derived from subsection (a) of section 1442 of title 42, U.S.C., 1952 ed. For remainder of such section 1442, which section has been transferred in its entirety to this revised title, see Distribution Table.

References to the Secretary, meaning the Secretary of Commerce, were substituted for references to the Director of the Census, to conform with 1950 Reorganization Plan No. 5, §§1, 2, eff. May 24, 1950, 15 F.R. 3174, 64 Stat. 1263. See Revision Note to section 4 of this title. Changes were made in phraseology.

AMENDMENTS

1986—Pub. L. 99-544 substituted “Agriculture and irrigation” for “Agriculture, irrigation, and drainage” in

¹ So in original. The word “and” probably should not appear.